

24STCV00957 24STCV00957

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Case Number: 24STCV00957 Hearing Date: July 8, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 8, 2026

Case Name: Martin Ansoorian

v. Tesla Motors, Inc., et al.

Case No.: 24STCV00957

Motion: Motion to

Compel Enforcement of Records Subpoena

Moving Party: Defendant Tesla Motors,
Inc.

Responding Party: None.

Notice: OK

Ruling: The Motion is granted.

Moving party to
give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

BACKGROUND

This is an employment action filed by Plaintiff Martin Ansoorian ("Plaintiff") against Defendants Tesla Motors, Inc. ("Tesla"), Diana Affre ("Affre"), and Does 1 through 25 (collectively, "Defendants").

On January 12, 2024, Plaintiff filed his complaint, asserting the following causes of action: (1) disability discrimination in violation of the Fair Employment and Housing Act ("FEHA"), (2) unlawful retaliation in violation of FEHA, (3) failure to accommodate, (4) failure to engage in interactive process, (5) failure to prevent discrimination and harassment from occurring in violation of FEHA, (6) FEHA violations based upon sexual harassment, (7) FEHA violations based upon sex and gender discrimination, (8) violation of Labor Code sections 98.6, 6310, and 1102.5(c), (9) wrongful termination in violation of public policy, (10) violation of Civil Code section 43, (11) violation of Civil Code section 51.7, (12) intentional infliction of emotional distress, and (13) negligent hiring, supervision, retention, and/or training.

On May 26, 2026, Tesla filed the instant motion to compel enforcement of records subpoena against non-party Brain Health USA ("Brain Health").

No opposition was filed.

DISCUSSION

Applicable
Law

A party seeking discovery from a person who is not a party to the action may obtain discovery by oral deposition, written deposition, or deposition for production of business records.¿ (Code Civ. Proc. § 2020.010.)¿ Pursuant to Code of Civil Procedure section 1987.1, "the court, upon motion reasonably made [by a party] . . . may make an order .

. . directing compliance with [a subpoena] upon those terms or conditions as the court shall declare . . ." (Code Civ. Proc. § 1987.1(a).) "If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production." (Code Civ. Proc., § 2025.480, subd. (a).) Further, pursuant to Code of Civil Procedure § 2017.010, "any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action." "Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action." (Code Civ. Proc., § 2017.010.)

Discussion

Tesla moves for an order from the Court compelling Brain Health to release Plaintiff's medical and therapy records in response to a records subpoena.

Timing

A motion to compel compliance with a records subpoena must be "made no later than 60 days after the completion of the record of the deposition...." (Code Civ. Proc., § 2025.480, subd. (b).)

Here, Tesla served Plaintiff with a notice to consumer or employee and objection, attaching a copy of the deposition subpoena for production of business records to Brain Health on February 28, 2025. (Reed Decl., ¶ 3; Exh. A.) Then, Tesla served the subpoena on Brain Health, requesting production by March 26, 2025. (Reed Decl., ¶ 4.) On February 25, 2026, Tesla served Plaintiff with a revised notice to consumer and copy of the revised subpoena to Brain Health. (Reed Decl., ¶ 8; Exh. C.) Under this subpoena, Tesla requested production from Brain Health by March 24, 2026. (Reed Decl., ¶ 9.) Thus, the 60-day deadline fell on May 23, 2026, a Saturday, so the deadline extended to the next court day, May 26, 2026. Tesla filed the instant motion on May 26, 2026. Therefore, Tesla complied with the timing requirements under Code of Civil Procedure section 2025.480, subdivision (b).

Separate Statement

“Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement.” (Cal. Rules of Court, rule 3.1345(a).)

Here, Tesla filed a separate statement with the Court in compliance with this requirement.

Meet and Confer

A motion to compel compliance with a records subpoena must “be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2025.480, subd. (b).)

Tesla’s counsel details numerous phone calls and emails to Brain Health on numerous occasions regarding the underlying records subpoena. (Reed Decl., ¶¶ 11-12.) Thus, this requirement is met.

Analysis

As mentioned, Tesla served Plaintiff with a notice to consumer and a copy of the subpoena on February 28, 2025, requesting production of Plaintiff’s medical and therapy records. (Reed Decl., ¶ 3; Exh. A.) Thereafter, Tesla served the subpoena on Brain Health. (Reed Decl., ¶ 4.) Then, on March 14, 2025, Plaintiff executed a written authorization for the release of his “medical records concerning [his] treatment as specified in the attached subpoena for records.” (Reed Decl., ¶ 5; Exh. B.) On March 26, 2025, Tesla’s counsel provided Plaintiff’s authorization to Brain Health. (Reed Decl., ¶ 6.) Brain Health neglected to produce Plaintiff’s therapy records because Plaintiff’s authorization did not expressly mention release of those records. (Reed Decl., ¶ 6.) Tesla’s counsel explained to Brain Health that Plaintiff’s authorization encompassed release of the therapy records, but Brain Health responded that release of the therapy records required express language. (Reed Decl., ¶ 7.)

On February 25, 2025, Tesla served Plaintiff with a revised notice to consumer, attaching a revised subpoena to Brain Health. (Reed Decl., ¶ 8; Exh. C.) Tesla served the subpoena on Brain Health, requesting production by March 24, 2026. (Reed Decl., ¶ 9.) However, on February 27, 2026, Plaintiff’s counsel sent a notice to Brain Health asserting objections to the subpoena and directing Brain Health to not produce the

requested documents. (Reed Decl., ¶ 10; Exh. D.) On March 24, 2024, Brain Health produced documents but did not include the therapy records. (Reed Decl., ¶ 11.) Brain Health indicated that it needed Plaintiff's signed release of his medical records to proceed. (Reed Decl., ¶ 11.) On April 23, 2026, after Tesla sent a letter further demanding all responsive documents, Brain Health transmitted further documents and stated it was willing to share the medical records and meet compliance, but patient consent was required under HIPAA regulations. (Reed Decl., ¶¶ 12-13.)

On April 29, 2026, a paralegal at Tesla's counsel's offices sent to Brain Health the prior signed authorization by Plaintiff allowing release of his medical and therapy records. (Reed Decl., ¶ 14; Exh. F.) In response, Brain Health again stated it was willing to share but was bound by HIPAA regulations and requested Plaintiff complete and sign a new 2026 authorization form. (Reed Decl., ¶ 15; Exh. G.) As of the filing of this motion, Tesla has not received Plaintiff's therapy records from Brain Health. (Reed Decl., ¶ 16.)

Tesla argues Brain Health waived objection to the subpoena by failure to follow statutory procedures under Code of Civil Procedure section 1985.3. A "nonparty whose personal records are sought by a subpoena duces tecum may, prior to the date of production, serve on the subpoenaing party, the witness, and the deposition officer, a written objection that cites the specific grounds on which production of the personal records should be prohibited. Notice of the bringing of that motion shall be given to the witness and deposition officer at least five days prior to production." (Code Civ. Proc., § 1985.3, subd. (g).)

Here, Brain Health failed to provide notice of written objection to the subpoena at least five days prior to the production date. Under both the initial and revised subpoena, Brain Health provided document production without the therapy records requested and did not provide an explanation for its failure to comply until after the production date. Therefore, Brain Health did not comply with Code of Civil Procedure section 1985.3.

Tesla argues the therapy records should be compelled because the therapy records are relevant to Plaintiff's claims and Tesla's defenses. Because Plaintiff alleges he was subject to harassment, retaliation, and discrimination due to his sex/gender and disability, as well

as intentional infliction of emotional distress, the Court finds the therapy records relevant to Plaintiff's claimed mental injuries and emotional distress pursuant to Code of Civil Procedure § 2017.010.

Tesla further argues Plaintiff's objections sent to Brain Health are meritless because he waived his privacy rights and the psychotherapist-patient privilege under the patient-litigant exception. The psychotherapist-patient privilege does not apply to "a communication relevant to an issue concerning the mental or emotional condition of the patient if such issue has been tendered by: (a) The patient; (b) Any party claiming through or under the patient;" (Evid. Code, § 1016.) The patient-litigation exception to the psychotherapist-patient privilege applies when a plaintiff places his mental or emotional condition at issue in litigation. (In re Lifschutz (1970) 2 Cal.3d 415, 434-435.) Additionally, a "[p]laintiff ... may not withhold information which relates to any physical or mental condition which they have put in issue by bringing lawsuit." (Britt v. Superior Court (1978) 20 Cal.3d 844, 864.) Plaintiff's complaint alleges Tesla caused him emotional distress, psychological distress, anxiety, anguish, mental harm, and feelings of hopelessness. (Compl., ¶¶ 48, 63, 77, 78, 90, 96, 106, 113, 121, 133, 142, 149, 154, 161.) Further, Plaintiff previously executed a written authorization for the release of medical records concerning his treatment pursuant to the subpoena. (Reed Decl., ¶ 5; Exh. B.) Specifically, Plaintiff's authorization stated:

I specifically authorize the release of all documents (including any computer-recorded, handwritten, audiotape or videotape materials) that relate or refer to any psychiatric, psychological, emotional or mental condition, diagnosis, counseling, treatment and/or examination, including but not limited to billing statements, notes, diaries, journals, audio or videotapes of any office visits or other treatment, memoranda, insurance forms, treatment plans, laboratory or other test results, diagnoses, prognoses, psychological evaluations, records of any hospitalizations, prescriptions, records of treatment performed, appraisals of patient status, documents (including any photographs or other materials) that I have submitted, records listing all appointments scheduled, rescheduled and/or cancelled by either me, my physician or other health care professional, any authorizations for me to miss work, or releases for me to return to work, and any documents listing any work restrictions, as specified in the attached subpoena for records, from January 1, 2018 to the present. This authorization

constitutes an express waiver of the physician-patient privilege. I expressly waive, release, and discharge any and all claims and liability that I may have arising from the release of such information, documents, and records pursuant to this Authorization.

(Reed
Decl., Exh. B.)

The Court finds this evidence as sufficient to waive the psychotherapist-patient privilege under the patient-litigant exception.

Notably, Plaintiff has not filed an opposition to the instant motion, nor did Plaintiff file a formal objection with Tesla following the notices to consumer regarding the subpoena.

Thus, the motion to compel enforcement of records subpoena is granted.

Sanctions

Tesla requests the Court award monetary sanctions against Brain Health in the amount of \$3,698.90.

The Court may award sanctions against a party “engaging in conduct that is a misuse of the discovery process.” (Code Civ. Proc., § 2023.030.) “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc., § 2023.030; subd. (a).) Misuse of the discovery process includes “Failing to respond or to submit to an authorized method of discovery.” (Code Civ. Proc., § 2023.010, subd. (d).)

Here, the Court finds an award of sanctions against Brain Health, a non-party, who stated multiple times that it sought to act in accordance with HIPAA regulations, as unnecessary. (See Reed Decl., ¶¶ 13, 15.) While the Court ultimately grants the instant motion against Brain Health, Brain Health expressed willingness to comply, after Plaintiff provided renewed authorization. (Reed Decl., ¶ 15.) Therefore, the Court, in its discretion, declines to award sanctions.

CONCLUSION

The Motion to Compel Enforcement of
Records Subpoena is GRANTED.

Moving party to give notice.